

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUOE051124: OLIVIA BENEDEUCE, AN INDIVIDUAL, ON HER OWN BEHALF
AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED vs CALIFORNIA
PIZZA KITCHEN, INC., A DELAWARE CORPORATION, et al.**

**09/02/2026 in Department 44
Motion for PAGA approval**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion:

Plaintiff’s Motion for Approval of Private Attorneys General Act Settlement and Award of Attorneys’ Fees and Reimbursement of Litigation Costs (*Unopposed*)

Tentative Ruling:

Plaintiff’s Motion for Approval of Private Attorneys General Act Settlement and Award of Attorneys’ Fees and Reimbursement of Litigation Costs is CONTINUED to **November 18, 2026 at 1:30 p.m. in Department 44.**

The principal monetary terms, the pro rata employee-allocation methodology, the treatment of uncashed checks, and the requested attorneys’ fees and litigation costs otherwise appear capable of approval on a supplemented record. At least 10 days before the continued hearing, Plaintiff shall file a single supplemental submission addressing the following remaining matters:

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1. Complete claim valuation. For every theory encompassed by the SAC and proposed PAGA release that is not included in the six-group valuation in the Lipeles declaration, provide the maximum and realistic exposure, assumptions, and discounts, or explain specifically why the theory adds no independent value because it is derivative, nonstackable, unavailable under the current PAGA statute, subsumed in another valued claim, or otherwise has no realistic settlement value.

2. Standing and representative scope. Identify evidence establishing that Plaintiff personally suffered each violation that remains alleged and released, as required by Labor Code section 2699(c)(1). For any theory Plaintiff did not personally suffer or may not pursue under Labor Code section 2699(k)(2), narrow the representative claim and release as appropriate.

3. Conform the Settlement Agreement. Submit a written amendment, stipulation, or other appropriate executed confirmation conforming the Settlement Agreement to the February 25, 2026 SAC and April 3, 2026 amended PAGA notice, including clear definitions of the operative complaint, operative PAGA notice, PAGA period, and released PAGA claims.

4. \$10,000 individual payment. Identify the individual claims and consideration supporting the \$10,000 payment to Plaintiff, explain the basis for the amount, and confirm that no portion of that payment constitutes consideration for the dismissed class claims. Plaintiff's declaration that she spent "at least 30 hours" of time on this case does not justify a \$10,000 award.

5. Settlement administration. Provide an updated Phoenix administration estimate based on the current estimated PAGA Member population and current pricing, together with confirmation of the requested not-to-exceed amount.

6. Revised employee notice. If the scope of the release is modified, submit a revised Notice of Settlement conforming to the final settlement and release.

7. Corrected proposed judgment. Submit a corrected proposed judgment and order that uses the September 2 or continued hearing date as appropriate, correctly identifies Judge Buehner, cites current Labor Code sections 2699(s)(2) and 2699(m), fills in all monetary amounts, expressly addresses the \$10,000 individual payment if approved, specifies the mechanism for retained jurisdiction and final dismissal, and includes a proposed Wednesday at 1:30 p.m. settlement-compliance/final-accounting hearing date.

8. LWDA submission. Provide documentary confirmation that any materially revised Settlement Agreement, release, notice, and proposed judgment submitted for approval have also been supplied to the LWDA in accordance with Labor Code section 2699(s)(2).

9. Attorney Fees. The Declaration of Kevin Lipeles seeks a fee award that amounts to a lodestar of \$69,930 based on hourly rates of \$300 for a paralegal and an attorney ranging to \$850 per hour for more experienced counsel, with a multiplier of 1.5. This rate amounts to a 35% contingency fee. This award is not justified based on the Court's knowledge of the

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prevailing market rates in the Ventura County legal community. The Court determine the reasonableness of the fee using a **25 percent benchmark**. Counsel must justify fees that exceed the Court's benchmark in connection with the continued approval motion.

10. Conformity with Rules of Court. The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Here, Plaintiff's counsel neglected to bookmark and appropriately paginate the exhibits attached to the Declaration of Kevin Lipeles. Counsel is admonished to comply with the rules of court in connection with all documents filed in connection with this motion.

Plaintiff's counsel shall give notice.